

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 38-034
Amendment to Title 17 of the Chickasaw Nation Code
(Indecent Exposure)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations for offenses and penalties, and the Tribal Legislature desires to amend those rules and regulations.

NOW, THEREFORE, BE IT RESOLVED, that Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 17, Chapter 5, of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red; deletions are stricken through; omissions without deletions of substance are signified by “* * *”):

CHAPTER 5
OFFENSES AGAINST PERSONS

Section 17-501.1	Child Abuse.
Section 17-501.2	Child Neglect.
Section 17-501.3	Domestic Violence.
Section 17-501.4	Domestic Violence by Strangulation.
Section 17-501.5	Possession or Procurement of Child Pornography.
Section 17-501.6	Domestic Abuse with Prior Pattern of Physical Abuse.
Section 17-501.7	Indecent Exposure.
Section 17-501.8	Outraging Public Decency.

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SECTION 17-501.7 **INDECENT EXPOSURE.**

A. It shall be unlawful to willfully and knowingly expose his or her genitals in any public place, or in any place where there are other persons present to be offended or annoyed thereby.

B. A person alleged to have committed an act of public urination shall not be prosecuted under this Section.

C. Upon conviction, the Court may require the offender to register as a sex offender under Title 17, Chapter 2, Article A, the Chickasaw Nation Sex Offender Registration and Notification Act.

D. Indecent Exposure shall be punishable by a fine not to exceed fifteen thousand dollars (\$15,000), by a term of imprisonment not to exceed three (3) years, or by both such fine and imprisonment.

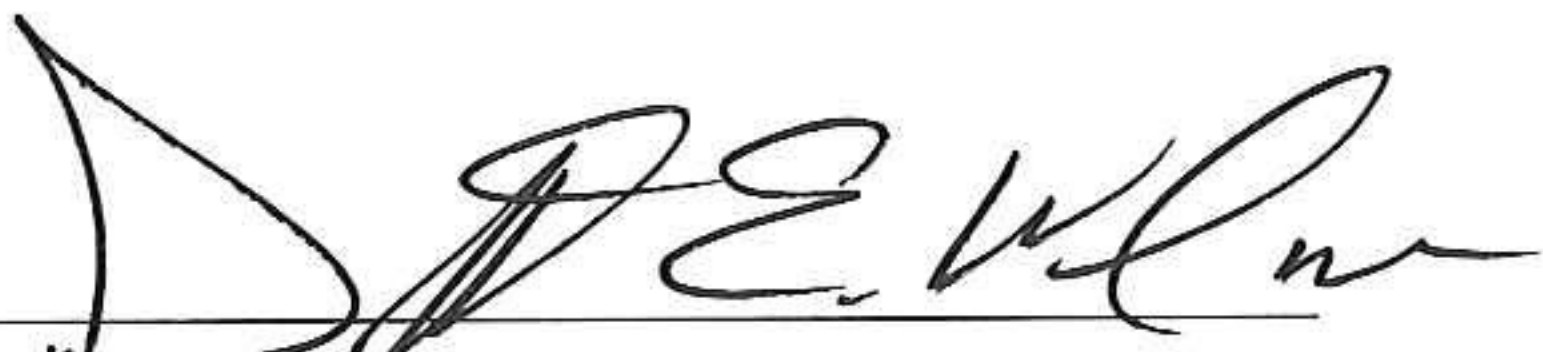
SECTION 17-501.8 **OUTRAGING PUBLIC DECENCY.**

A. It shall be unlawful to willfully and wrongfully commit any act which openly outrages public decency, including, but not limited to, urination in a public place.

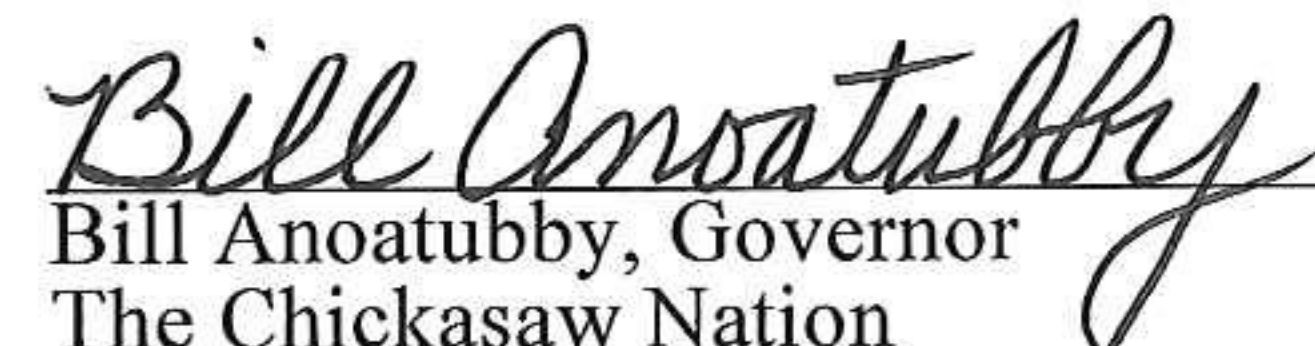
B. Convictions under this Subsection A shall not be subject to registration under Title 17, Chapter 2, Article A, the Chickasaw Nation Sex Offender Registration and Notification Act.

C. Outraging Public Decency shall be punishable by a fine not to exceed five thousand dollars (\$5,000), by a term of imprisonment not to exceed one (1) year, or by both such fine and imprisonment.

Executed in regular session of the Chickasaw Tribal Legislature, Meeting at Ada, Oklahoma, on August 20, 2021, by a vote of 13 ayes, 0 nays, and 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: AUG 20 2021

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Amendment to Title 17 of the Chickasaw Nation Code
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Explanation:

This resolution adds two new offenses to Title 17: Indecent Exposure and a lesser offense, outraging public decency.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature